

3. **23CV03127 Wilson, Daedalys et al v. Park, Lisa et al.**

EVENT: Plaintiffs and Cross-Defendants' Daedalys Wilson and Kimberly Torres' Motion for Relief from Waiver of Objections

Plaintiffs and Cross-Defendants' Daedalys Wilson and Kimberly Torres' Motion for Relief from Waiver of Objections is GRANTED. The ruling does not preclude Defendants from filing a discovery motion should they deem it necessary. The Court will sign the proposed order.

4. **25CV05091 De Baun, Roger Dale v. Fulton, Lauren Lynn et al.**

EVENT: City of Oroville's Demurrer to Plaintiff Roger Dale De Baun's First Amended Complaint

Fourth Cause of Action (Title II)

The demurrer is OVERRULED.

Defendant's first contention is that the pleading fails to allege whether the subject sidewalk was an "existing facility" for Title II purposes (i.e. whether the sidewalk was constructed before or after 1992). Less specificity is required when it appears from the nature of the allegations that the defendant must necessarily possess full information concerning the facts of the controversy. (*Miles v. Deutsche Bank National Trust Co.* (2015) 236 Cal.App.4th 394, 403) Such is the case here. Defendant necessarily possesses full information as to when the subject sidewalk was constructed. The pleading sufficiently alleges in the alternative that the subject sidewalk constituted an existing facility.

Defendant proceeds to argue that the pleading does not allege sufficient facts demonstrating program-wide issues with city sidewalks. However, Defendant does not cite a case indicating program-wide issues must be specifically alleged at the pleading stage, nor is the Court aware of any. The cases cited were in the context of summary judgment, trial, and other evidentiary hearings.

Here again, facts relating to whether the sidewalks are inaccessible on a program level to disabled persons is information we would expect to be in the City's possession. The pleading sufficiently alleges program level inaccessibility.

Defendant next argues the allegations of being forced into the roadway establish injury not a Title II violation. Defendant seems to suggest that the allegation of Plaintiff's injury does not demonstrate program-wide inaccessibility to sidewalks. That's true, but as